

STATE OF NEW YORK

9622--C

R. R. 183

IN ASSEMBLY

January 21, 2026

Introduced by M. of A. PEOPLES-STOKES, LUPARDO, STIRPE, TAPIA -- read once and referred to the Committee on Economic Development -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee -- again reported from said committee with amendments, ordered reprinted as amended and recommitted to said committee -- reported and referred to the Committee on Rules -- ordered to a third reading, amended and ordered reprinted, retaining its place on the order of third reading

AN ACT to amend the cannabis law, in relation to limiting prohibitions of advertising of cannabis products or services on billboards

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Subdivision 1 of section 86 of the cannabis law is amended
2 to read as follows:

3 1. The board shall promulgate rules and regulations governing the form
4 and content of advertising and marketing of licensed cannabis and any
5 cannabis products or services in a manner not inconsistent with the
6 provisions of this section.

7 § 2. Paragraph (k) of subdivision 2 of section 86 of the cannabis law
8 is amended to read as follows:

9 (k) is in the form of a billboard that violates the provisions of
10 paragraph (a), (b), (c), (d), (e), (f), (h) or (i) of this subdivision,
11 subdivision two-b of this section, or paragraph (a) or (b) of subdivi-
12 sion three of this section or that includes any cannabis brand informa-
13 tion; or

14 § 3. Section 86 of the cannabis law is amended by adding two new
15 subdivisions 2-a and 2-b to read as follows:

16 2-a. For purposes of this section a billboard shall mean any off-prem-
17 ises signage, of any size or any location, as may be defined by local
18 zoning laws and regulations governing the size and location of billboard
19 advertisements.

20 2-b. (a) No billboard shall be permitted that does not advertise a
21 licensee. A licensee shall not permit the use of their trademarks,
22 brands, names, locations, or other distinguishing characteristics for

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 third-party use on advertising in a manner that does not comply with the
2 provisions of subdivision two of this section.

3 (b) On and after the effective date of this subdivision, any billboard
4 advertising a licensee shall only be permitted to include the following
5 information:

6 (i) The licensee's name, license number, logo, entity name, or doing
7 business as name;

8 (ii) The address, phone number, email address, website URL or QR code
9 for the licensed business;

10 (iii) The nature of the business for which the entity is licensed;

11 (iv) The licensee's business slogan;

12 (v) The hours of operation for the licensed business;

13 (vi) Notice of opening status or an authorized licensee showcase
14 event;

15 (vii) The licensee's social equity status, if applicable to the licen-
16 see;

17 (viii) Directional information to allow a consumer to locate such
18 licensee; and

19 (ix) Any other factual information pertaining to the licensee as
20 promulgated by the board through regulation.

21 (c) Notwithstanding the provisions of this section, no billboards
22 advertising a cannabis licensee shall be permitted to be located within
23 a city with a population of one million or more.

24 § 4. This act shall take effect immediately.